

Raj Singh v. Collector, District Magistrate

Allahabad High Court · Division Bench · 26 August 2019 · WRIT - C No. 26180 of 2019 · **Writ disposed; petitioner relegated to Executive Engineer under clause 6.14 to seek instalments for electricity dues.**

HEADNOTE

Power to fix instalments for electricity dues under clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005 vests in the Executive Engineer. A writ to quash a recovery citation, where the consumer is willing to pay if instalments are fixed, is disposed of with liberty to approach the Executive Engineer, who is to consider the request in accordance with law.

FACTUAL SUMMARY

Raj Singh filed a writ in the Allahabad High Court seeking to quash a recovery citation dated 16 July 2019, under which Rs.1,48,305 and other amounts were sought as electricity dues. He did not contest the arrears on merits. Counsel submitted that the petitioner was ready and willing to pay if instalments were fixed. Counsel for respondent no. 3 was heard. The Division Bench disposed of the petition on 26 August 2019 without examining the citation or the quantum of dues.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalments for electricity dues

HOLDING

The power to fix instalments to pay electricity dues vests with the Executive Engineer under clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005. The writ was disposed of with liberty to approach the Executive Engineer within two weeks; if approached, the Executive Engineer shall consider the matter and do the needful in accordance with law most expeditiously. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 16 JULY 2019 IS LIABLE TO BE QUASHED

¶ 1

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO INSTALMENTS AND ON WHAT TERMS

Left to the Executive Engineer under clause 6.14 ¶ 1